

1.

CASE #	CASE NAME	HEARING NAME
CVME2402536	ZAVALA VS GENERAL MOTORS LLC	MOTION TO TAX COSTS

Tentative Ruling: : Are filing fees e-court service fees, if so,

Grant the motion as to \$1,797.25 in deposition costs for non-appearance fees.

Plaintiff Oscar Zavala filed this Song-Beverly action regarding a 2021 GMC Sierra that contained defects to the suspension, transmission and airbag systems. The complaint, filed 9/11/24, asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of express warranty; and (5) breach of implied warranty of merchantability. On 2/3/26, Plaintiff filed a notice of settlement. On 5/6/26, Plaintiff filed a memorandum of costs seeking \$6,892.33 in costs.

Defendant moves to tax \$6,012.93. It argues that \$444.27 related to filing fees are not recoverable as the motions were not reasonably necessary. It contends that \$150 in jury fees are not recoverable since there was no jury trial. It asserts that \$1,797.25 non-appearance fees for depositions should not be recoverable since Plaintiff unilaterally scheduled the deposition. It claims that \$3,723.65 related to the deposition of Bryan Jenson and other third parties are not supported by invoices and include optional services and fees. It argues that \$347.76 for deposition subpoenas on non-party dealerships are not reasonably necessary as the depositions were duplicative, and the depositions never took place.

Plaintiff contends that as the prevailing party, he is entitled to all costs under Song-Beverly. He argues that Defendant failed to meet its burden in demonstrating that the costs are unreasonable since the verified memorandum is prima facie evidence of their proprietary. Otherwise, he asserts each cost is reasonable and necessary to litigation.

In reply, Defendant argues that it pointed out specific costs that were not reasonable, and Plaintiff failed to shift the burden. It otherwise repeats the arguments from the moving papers. It argues that Civil Code section 1794(d) does not allow the recovery of unnecessary or unsubstantiated costs.

Except as otherwise expressly provided by statute, the party who prevails in any action or proceeding “is entitled as a matter of right to recover costs.” (Code Civ. Proc. § 1032(b).) Section 1033.5(a) contains a list of items specifically allowed as recoverable costs, and section 1033.5(b) contains a list of items that “are not allowable as costs, except when expressly authorized by law.” An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (*Id.* at § 1033.5(c)(4).) In particular, the item “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “shall be reasonable in amount.” (*Id.* at § 1033.5(c)(2) and (3).)

Civil Code section 1794(d), however, is broader as it permits the prevailing buyer to recover “costs and expenses” that are “reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” The Legislature intended “costs and expenses” to include items not stated in the statutory definition of costs. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.)

“A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) If the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Ladas, supra*, 19 Cal.App.4th 774.)

Defendant challenges various filing fees but fails to specifically identify which of the 16 fees it is specifically challenging. However, on its face, several of these do not appear to be appropriate as there are no filing fees associated with them: POS Summons (\$12.15), CMC Statement (\$18.25), MTC RFP Reply (\$13.75), Notice of Withdrawal of MTC PMQ (\$13.75), MTC PMQ Reply (\$13.75), MTC RFP Reply (\$13.75), Declaration re OSC re: Sanctions (\$13.75), Notice of Court’s June 6, 2025, Order (\$13.75), Amended Notice of Court’s June 6, 2025, Order (\$13.75), and Notice of Settlement (\$13.82). To the extent that these are e-court related costs, these should have been in category 14—not category 1. To that end, the court seeks to clarify with Plaintiff what is the basis of these charges as they do not constitute filing fees. If they are e-court related costs, they would be allowed.

As for the filing fees for the discovery motions, ultimately the court granted the motions. The court cannot say that these were not reasonably necessary to litigation. As for the CMC statement, OSC declaration and Notice of Settlement, they are reasonably necessary to litigation as they relate to case management issues. To this end, the court denies the motion.

Failure to timely post jury fees waives the right to jury fees. (Code Civ. Proc. § 631.) Here, Plaintiff was preserving the right to a jury trial. The court finds these reasonably necessary.

There are several non-appearance fees: PMQ non-appearance (\$465.30), Shane Burk non-appearance (\$447.55), Tech 218 of Temecula Valley non-appearance (\$351.70), Tech 60541 of Temecula Valley non-appearance (\$446.70), and PMQ of Temecula Valley non-appearance (\$446.70). Plaintiff fails to address this in the opposition. For the third-party non-appearance fees, the court finds these fees not reasonably necessary to litigation as to this Defendant when Defendant had no control

over third parties' appearances. For Defendant's non-appearance fee, Defendant indicates that it served notice that it was unavailable for that day. Plaintiff failed to justify the non-appearance deposition fee, when it had notice that Defendant would not appear. Based on this, the court grants the motion.

Defendant speculates that there were extra surcharges in the deposition invoices. Plaintiff provides some invoices in opposition. The court sees no extraordinary charges. To this, the motion is denied.

Defendant challenges service of process on third party dealership personnel as non-necessary. The court finds that these are necessary witnesses as they relate to the repair history of the vehicle. To this, the motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVME2405571	RAMOS VS SLABAUGH	DEMURRER

Tentative Ruling: SUSTAIN Defendant's Demurrer to the Second Cause of Action for Survival Action for Pre-Death Pain and Suffering, without leave to amend.

This is an action for medical malpractice. On November 27, 2024, Plaintiff Angelica Ramos ("Angelica"), the daughter of Rodolfo S. Ramos Jr. ("Decedent") filed a Complaint against multiple defendants, including Defendants Douglas P. Slabaugh, M.D. ("Defendant"), asserting a single cause of action for wrongful death by medical malpractice. The Complaint alleged that Decedent died on December 1, 2023. (Compl. ¶ 1.)

On March 4, 2025, Angelica, along with other plaintiffs, including Robert Ramos, Rodolfo Ramos, Reylene Ramos, a minor by and through her Guardian Ad Litem, Julissa Lopez ("Plaintiffs"), the children of Decedent, filed the First Amended Complaint ("FAC") against the same defendants, asserting the same cause of action for wrongful death by medical malpractice.

On October 28, 2025, Plaintiffs filed the operative Second Amended Complaint ("SAC") against the same defendants, asserting the same cause of action for wrongful death by medical malpractice and adding a survival action for pre-death pain and suffering by Angelica.

Defendant demurs to the second cause of action for survival action for pre-death pain and suffering, arguing that it is untimely and barred by the statute of limitations under CCP § 366.1. Defendant asks the Court to sustain his demurrer without leave to amend.

In opposition, Plaintiffs argue that the second cause of action for survival action relates back to the original Complaint filed on November 27, 2024. Plaintiffs assert that the claim arises from the same general set of facts, involves the same injury, and concerns the same instrumentality as the wrongful death action. Plaintiffs further contend that the 90-day tolling provision of CCP § 364 extended the statute of limitations, and that the recent legislative amendments to CCP § 377.34 provide an extended filing period for